

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 39
JUDICIAL OFFICER: EDWARD G WEIL
HEARING DATE: 12/18/2025

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 39's email address is: dept39@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 39 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Law & Motion

1. 9:00 AM CASE NUMBER: C22-01725
CASE NAME: LONELL SWEARINGTON VS. DONOR NETWORK WEST
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL ROGS, SET 1
FILED BY: SWEARINGTON, LONELL R
TENTATIVE RULING:

Plaintiff moves to compel further responses to special interrogatories, set one. The three special interrogatories in question request (1) contact information for all employees during the relevant time period; (2) the number of employees during the period; and (3) the job titles or positions of employees in the same period.

(A separate motion to compel further responses to a request for production of documents is currently set for January 8, 2026. On December 4, 2025, the due date for opposition to the pending motion, Defendant filed a memorandum of points and authorities in opposition captioned for the January

requests for documents motion, instead of the pending motion, but the arguments made are written to apply to either type of discovery, and the issues are the same. Counsel's declaration is captioned for the pending Interrogatories motion. The Court views this as an inadvertent error in captioning.)

The dispute was the subject of an Informal Discovery Conference with the Court on July 10, 2025. The underlying case is a wage and hour putative class action. A prior case, however, *Shweiki v. Donor Network West*, No. MSC20-00073 settled wage and hour claims from January 10, 2016 through August 22, 2022. Mr. Swearington opted out of that settlement, thus his individual claim may proceed. He brings this putative action to address claims accruing after August 22, 2022. Initially, the claims included prior time periods, but counsel ultimately agreed that it covered only post-August 2022 claims. (Regardless of whether counsel is bound by the statement, it is a necessary concession in this case.) The glitch in this effort is that he stopped working for defendant on July 23, 2021, and therefore is not and has never been a member of the class he seeks to represent. Accordingly, he seeks classwide discovery in order to find another class representative.

Plaintiff is entitled to make an effort to find a new class representative. Plaintiff points to cases that have allowed such discovery, including *Best Buy Stores, L.P. v. Superior Court* (2006) 137 Cal.App.4th 772, 774. and *Cash Call v. Superior Court* (2008) 159 Cal.App.4th 273, 284.) In these cases, however, the named plaintiff at one time was a class member, but ceased to be one. Where the plaintiff never was a class member, it has been held that no precertification discovery is permitted. (*First American Title Ins. Co.*, (2007) 146 Cal.App.4th 1564, 1577. (Trial court opinions do not set precedent and will not be considered.) (*Bolanos v. Superior Court* (2008) 169 Cal.App.4th 744; *In re Molz* (2005) 127 Cal.App.4th 836, 845.) Plaintiff points out in reply, however, that the Shweiki settlement was not approved under August 27, 2024, over two years after the complaint in this action was filed. Thus, the pre- post-August 22 distinction did not become critical under August of 2024, rendering this case more like *Best Buy* and *Cash Call* than it is like *First American Title*.

The Court notes that in the interrogatories, the relevant time period is defined as February 21, 2018 through the time of response to the interrogatory. It is not limited to post-August 22, 2022 time period. To the extent these interrogatories relate to time period before August 22, 2022, they are not relevant to the subject to the subject matter of this action. As to the time period on or after August 22, 2022, the motion is granted. Defendant will provide full answers without objection no later than 14 days after service of notice of entry of this order

While the Court rules against defendant on the merits, its position was substantially justified. Accordingly, no sanctions will be awarded.

2. 9:00 AM CASE NUMBER: C23-00792
CASE NAME: JEFFREY R. KENNY AND LEKHINI JOSHI-KENNY, TRUSTEES VS. TIMOTHY BANCROFT
***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**
FILED BY: JEFFREY R. KENNY AND LEKHINI JOSHI-KENNY, TRUSTEES OF THE JEFFREY R. KENNY AND LEKHINI JOSHI-KENNY LIVING TRUST DATED JANUARY 9, 2021
TENTATIVE RULING: